

25STCV37667 25STCV37667

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 13, 2026

CASE NUMBER

25STCV37667

MOTION

Motion for Judgment on the Pleadings

MOVING PARTY

Defendant City of Los Angeles

OPPOSING PARTIES

Plaintiffs Estate of Michael

Younessian, Lea Younessian, individually and as representative of the Estate
of Michael Younessian, Orit Younessian, and Yehudahy Younessian

MOTION

Defendant City of

Los Angeles ("Defendant") moves for judgment on the pleadings on the operative complaint of Plaintiffs Estate of Michael Younessian ("Decedent"), Lea Younessian, individually and as representative of the Estate of Michael Younessian, Orit Younessian, and Yehudahy Younessian (collectively, "Plaintiffs").

Plaintiffs oppose the motion.

ANALYSIS

A motion for

judgment on the pleadings serves the same function as a general demurrer but may be made after the time to demur has expired. (Code Civ. Proc., § 438, subd.

(f).) "Like a demurrer, the grounds for

the motion [for judgment on the pleadings] must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Civic Partners Stockton, LLC v. Youssefi (2013) 218

Cal.App.4th 1005, 1013.) In ruling on a

motion for judgment on the pleadings, "[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true." (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.)

In first cause of

action in their form complaint sounding in premises liability, Plaintiffs assert a claim for dangerous condition of public property against

Defendant. Government Code section 835

sets forth the exclusive conditions under which a public entity is liable for injuries caused by such a dangerous condition. (Metcalf v. County of San Joaquin (2008) 42 Cal.4th 1121, 1129, citing Brown v. Poway Unified School Dist. (1993) 4 Cal.4th 820, 829; see also Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1131-1141.)

Pursuant to

Government Code section 835, "a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was

incurred, and that either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition . . . a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov. Code, § 835.) A public entity has actual notice of a dangerous condition “if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character.” In Count Three of their form complaint, A public entity has constructive notice of a dangerous condition only if “the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character. (Gov. Code, § 835.2, subd. (b).)

As Defendant

points out, only Decedent has a claim for dangerous condition of public property against Defendant. In the instant case, therefore, only Lea Younessian, as representative of the Estate of Michael Younessian, may pursue a claim against Defendant for purportedly maintaining a dangerous condition on public property. The other Plaintiffs must assert a claim for wrongful death, if at all.

Accordingly, the

Court grants the motion for judgment on the pleadings without leave to amend as to the first cause of action filed on behalf of Lea Younessian, Orit Younessian, and Yehudahy Younessian in their individual capacities.

To the extent

Plaintiffs intend the second cause of action to be a claim for wrongful death, Plaintiffs fail to allege any facts in support of the claim. Plaintiffs do not allege how Decedent died, or how Decedent's death was a result of any conduct by Defendant. Furthermore, pursuant to the Government Claims Act, a party with a claim for damages against a public entity must first file the claim directly with that entity.

The party may file a lawsuit only if the public entity denies or rejects the claim. (Gov. Code §§ 905, 945.4; City of Ontario v. Superior Court (1993) 12 Cal.App.4th 894.) The claims presentation requirement provides the public entity with an opportunity to evaluate the claim and decide whether to pay on it (Roberts v. County of Los Angeles (2009) 175 Cal.App.4th 474.)

Failure to allege

facts demonstrating compliance with the claims presentation requirement

subjects the complaint to a motion for judgment on the pleadings. (State of Calif. v. Superior Court (2004) 32 Cal.4th 1234, 1239.) In

connection with the claims presentation requirement, Plaintiffs do not allege they complied with the Government Claims Act with respect to any wrongful death cause of action, nor have they established they referenced any wrongful death of Decedent in their claim.

Accordingly,

Plaintiffs must amend to clarify the basis for their second cause of action in the operative complaint.

CONCLUSION AND ORDER

Defendant's motion

for judgment on the pleadings as to the first cause of action alleged on behalf of Lea Younessian, Orit Younessian, and Yehudahy Younessian in their individual capacities is granted without leave to amend. Defendant's motion for judgment on the pleadings as to the second cause of action is granted with leave to amend.

Plaintiffs are to

file an amended complaint within 20 days of notice of the Court's order.

Defendants are

ordered to provide notice of the Court's ruling and to file proof of service of same.